

HOUSE BILL 1491

By Bulso

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 16; Title 20 and Title 49, relative to the
"Protecting Religious Liberty and Expression in
Public Schools Act."

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, is amended by adding the following as a new part:

49-6-8201. Short Title.

This part is known and may be cited as the "Protecting Religious Liberty and Expression in Public Schools Act."

49-6-8202. Findings.

The general assembly finds and determines that:

- (1) Nativists were deeply prejudiced against ecclesiastical organizations and especially the Catholic Church;
- (2) Nativists gave expression and force to these anti-Catholic animosities by advocating the notion of separation of church and state;
- (3) The idea of separation of church and state departs from the religious liberty guaranteed by the Constitution of the State of Tennessee and the religious liberty guaranteed by the Constitution of the United States by restricting not only government but also religion and by discriminating against churches and other ecclesiastical religion, in contrast to more individualistic spirituality;
- (4) Nativists promoted notions of generically "American" liberties, which flattened out the difference between state and federal rights, and which laid a

foundation for the supreme court's decisions incorporating the First Amendment's Establishment Clause against the states;

(5) Nativists thereby inculcated the idea that states must conform to the so-called separation of church and state;

(6) Nativists sought to place limits on the election and lobbying speech of churches;

(7) The supreme court of the United States in 1947, in an opinion written by Justice Hugo Black, a former Klansman, incorporated the First Amendment's Establishment Clause against the states and interpreted it to require separation of church and state;

(8) The Establishment Clause decisions of the supreme court of the United States have ever since been infected with discriminatory ideas of separationism;

(9) The decisions of the supreme court of the United States have ever since incorporated the Establishment Clause against the states in ways that suppress state conceptions of disestablishment that are more tolerant and respectful of religious liberty;

(10) The Blaine Amendments that appear in many state constitutions are a product of the nativist, anti-Catholic sentiments that undergirded and propagated the idea of separationism and, moreover, violate the Free Exercise Clause of the United States Constitution, as interpreted by the supreme court's recent decisions in *Espinoza v. Montana Dept. of Revenue*, 591 U.S. 464 (2020), and *Carson v. Makin*, 596 U.S. 767 (2022);

(11) The Establishment Clause of the United States Constitution restricts only laws enacted by Congress, and the Fourteenth Amendment of the United

States Constitution offers no support for requiring states to comply with the restrictions that the Establishment Clause imposes on Congress;

(12) This legislature enjoys the power to extend protection to religious liberty and freedom of expression and to provide redress against deprivations of these liberties; and

(13) This state seeks compliance with First Amendment and opportunities to bring questions about its meaning before the courts.

49-6-8203. Definitions.

As used in this part, unless the context otherwise requires:

(1) "Court" means a court of this state, except an administrative or agency tribunal, or an Article III court of the United States;

(2) "Public school" means a school in this state that serves students in any of the grades kindergarten through twelve (K-12) and that is operated by an LEA, by this state with public funds, or pursuant to a charter agreement, as defined in § 49-13-104;

(3) "Separation of church and state doctrine" means any restriction or denial of a benefit that purports to be justified on grounds of separation of church and state or any element of any of the following supreme court decisions:

(A) *Everson v. Board of Education*, 330 U.S. 1 (1947);

(B) *McCormack v. Board of Education*, 333 U.S. 203 (1948);

(C) *Engel v. Vitale*, 370 U.S. 421 (1962);

(D) *Abington School District v. Schempp*, 374 U.S. 203 (1963);

(E) *Epperson v. Arkansas*, 393 U.S. 97 (1968);

(F) *Lemon v. Kurtzman*, 403 U.S. 602 (1971);

(G) *Stone v. Graham*, 449 U.S. 39 (1980);

(H) *Wallace v. Jaffree*, 472 U.S. 38 (1985);

(I) *Edwards v. Aguillard*, 482 U.S. 578 (1987);

(J) *Lee v. Weisman*, 505 U.S. 577 (1992); or

(K) *Santa Fe Independent School District v. Doe*, 530 U.S. 290

(2000); and

(4) "State officer or employee" means a state or local officer or employee of this state or political subdivision of this state, which includes a member of a local board of education and a teacher, principal, administrator, or other person employed by a public school system.

49-6-8204. Enforcement.

A state officer or employee may enforce the separation of church and state doctrine or the Establishment Clause only as necessary to comply with:

(1) A judgment or decree entered by a court against that specific officer or employee, a superior of the officer or employee, or the entity in which the state officer or employee is employed; or

(2) A directly-on-point ruling from the supreme court of the United States, when there are no reasonable grounds for distinguishing the ruling factually or legally.

49-6-8205. Remedies.

(a) A person adversely affected by a violation of § 49-6-8204 may bring a civil action in any court of this state against a state or local officer who violates § 49-6-8204, and upon finding that the defendant has violated or is violating that person's or entity's rights under this part, the court shall award:

(1) Declaratory relief;

(2) Injunctive relief;

(3) Nominal and compensatory damages; and

(4) Court costs and reasonable attorneys' fees.

(b) The plaintiff in an action brought pursuant to this section has a right to a jury trial.

49-6-8206. Fee-Shifting.

(a) Notwithstanding another law to the contrary, a person, including an entity, attorney, or law firm, who sues to enforce the separation of church and state doctrine or the Establishment Clause against any person or entity in this state, in any court of this state or in any arbitration proceeding in this state, or that represents any litigant seeking such relief in any such court or in any arbitration proceeding, is jointly and severally liable to pay the costs and reasonable attorney's fees of the prevailing party, including the costs and reasonable attorney's fees the prevailing party incurs in its efforts to recover costs and fees under this section.

(b) For purposes of this section, a party is considered a prevailing party if:

(1) A court or an arbitrator dismisses a claim or cause of action brought against the party by a litigant that seeks the relief described in § 49-6-8205, regardless of the reason for the dismissal;

(2) A state or federal court or an arbitrator enters judgment in the party's favor on that claim or cause of action; or

(3) The litigant that seeks the declaratory or injunctive relief described in § 49-6-8205 voluntarily dismisses or nonsuits its claim or case against the party.

(c) A prevailing party may recover costs and reasonable attorney's fees under this section only to the extent that those costs and attorney's fees were incurred while defending claims or causes of action on which the party prevailed, or while attempting to recover those costs and attorney's fees.

(d) Regardless of whether a prevailing party sought to recover costs or attorney's fees in the underlying action, a prevailing party under this section may bring a civil action to recover costs and attorney's fees against a person, including an entity, attorney, or law firm, who sought declaratory or injunctive relief described by § 49-6-8205 not later than the third anniversary of the date on which, as applicable:

(1) The dismissal or judgment described in subsection (b) becomes final on the conclusion of appellate review; or

(2) The time for seeking appellate review expires.

(e) It is not a defense to a civil action brought under subsection (d) that:

(1) A prevailing party under this section failed to seek recovery of costs or attorney's fees in the underlying action;

(2) The court or arbitrator in the underlying action declined to recognize or enforce this section; or

(3) The court or arbitrator in the underlying action held that any provisions of this section are invalid, unconstitutional, or preempted by federal law, notwithstanding the doctrine of issue or claim preclusion.

(f) Notwithstanding title 20, chapter 4, or another law to the contrary, a civil action brought under subsection (d) may be brought in:

(1) The county in which all or a substantial part of the events or omissions giving rise to the claim occurred;

(2) The county of residence of a defendant at the time the cause of action accrued, if the defendant is an individual;

(3) The county of the principal office in this state of a defendant that is not an individual; or

(4) The county of residence of the claimant, if the claimant is an individual residing in this state.

(g) If a civil action is brought under subsection (d) in a venue described in subsection (f), then the action must not be transferred to a different venue without the written consent of all parties.

(h) Notwithstanding another law to the contrary, any contractual choice-of-forum provision that purports to require a civil action brought under subsection (d) to be litigated in another forum is void based on this state's public policy and is not enforceable in any state or federal court.

(i) Notwithstanding another law to the contrary, the Tennessee Public Participation Act, compiled in title 20, chapter 17, does not apply to an action brought under subsection (d).

49-6-8207. Use of the Bible.

(a) A public school shall teach all students, except for the students who are excused pursuant to subsection (c):

(1) The Bible as literature; and

(2) Age-appropriate instruction on the history of Israel, the stories and the moral and ethical teachings of the Old and New Testaments, the life of Jesus, the history of the early Christian church, and the Bible's influence on western civilization.

(b) A public school shall not:

(1) Teach the Bible as religious dogma;

(2) Coerce a student to believe or accept the Bible as divinely inspired; or

(3) Teach the Bible in any manner that violates the Establishment Clause as interpreted by the supreme court of the United States.

(c) A public school shall excuse any student from Bible-related instruction upon the written request of the student's parent or the student, if the student is eighteen (18) years of age or older.

49-6-8208. Period of Prayer and Reading of the Bible.

(a) A public school shall provide its students and employees with an opportunity to participate in a designated period of prayer and reading of the Bible or other religious text on each school day in accordance with this section.

(b) A public school shall adopt and implement a policy for purposes of implementing the requirement in subsection (a) that:

(1) Prohibits a student or employee of the public school from participating in the period of prayer and reading of the Bible or other religious text unless the employee or the parent or guardian of the student or the student, if the student is eighteen (18) years of age or older, submits to the LEA or public charter school a signed consent form that includes:

(A) An acknowledgment that the student, parent, or employee has the choice of whether to participate in the period of prayer and reading of the Bible or other religious text;

(B) A statement that the person has no objection to participating, or the parent's student participating, in or hearing the prayers or readings offered during the period;

(C) An express waiver of the person's right to bring any claim under state or federal law arising out of the adoption of a policy under this section, including a claim under the Establishment Clause of the First Amendment to the United States Constitution or a related state or federal

law, releasing the public school and its employees from liability for any such claims brought in state or federal court; and

(D) An agreement to arbitrate any legal claim that arises out of or in any way relates to the adoption of a policy under this section, including a claim under the Establishment Clause of the First Amendment to the United States Constitution or a related state or federal law;

(2) Prohibits the provision of a prayer or reading of the Bible or other religious text over a public address system;

(3) Specifies that a period of prayer or reading of the Bible or other religious text shall not be a substitute for instructional time;

(4) Ensures a prayer or reading of the Bible or other religious text is not provided in the physical presence of, within the hearing of, or in any other manner that would constitute an injury in fact within the meaning of the Constitution of the United States or the Tennessee Constitution to a person who has not consented pursuant to subdivision (b)(1) or who has revoked their consent pursuant to subsection (c) and has not submitted a new form of consent pursuant to subdivision (c)(1); and

(5) May require that the period of prayer and reading of the Bible or other religious text be provided:

(A) Before regular school hours; and

(B) By any other method recommended by the attorney general and reporter or legal counsel for the district or school.

(c) An employee or parent or guardian of a student or the student, if the student is eighteen (18) years of age or older, may revoke the person's consent provided pursuant to subdivision (b)(1) by informing the appropriate school administrator, as

determined by the public school, of the revocation. An employee or student for whom consent is revoked pursuant to this subsection (c):

(1) Shall not participate in the designated period of prayer and reading of the Bible or other religious text required pursuant to subsection (a) unless the employee, parent or guardian of the student, or the student, if the student is eighteen (18) year of age or older, submits to the LEA or public charter school a new consent form in accordance with subdivision (b)(1);

(2) Remains bound by the waiver in subdivision (b)(1)(C); and

(3) Remains bound by the agreement to arbitrate in subdivision (b)(1)(D).

(d) This section does not prohibit a student or employee of the LEA or public charter school from participating in prayer or reading the Bible or other religious text during a period of the school day that is not designated as a period of prayer and reading of the Bible or other religious text under this section.

49-6-8209. Civil Action for Noncompliance.

Any student of a public school that fails to comply with the requirements of this part, and any parent or guardian of such a student, has standing to bring and may bring a civil action against the LEA or public charter school and is entitled to recover:

(1) Declaratory and injunctive relief; and

(2) Court costs and reasonable attorney fees.

49-6-8210. Severability.

If any provision of this part or the application of any provision of this part to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of this part that can be given effect without the invalid provision or application, and to that end, the provisions of this part are severable.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.